

OFFICE OF THE SECRETARY

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May 31, 2019

The Honorable Daniel J. Buckley
Judge of the Superior Court
County of Los Angeles
111 North Hill Street Department PJ
Los Angeles, CA 90012

Re: Robert Anthony Escareno
CDCR No: H83031
Case No: VA068367
Date of Sentence: July 9, 2004

Dear Honorable Daniel J. Buckley:

The purpose of this letter is to provide the court with the authority to resentence inmate Robert Escareno, H83031, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Escareno has remained disciplinary free since 2006. He received one serious Rules Violation Report (RVR) dated April 4, 2006, for Mutual Combat and two Administrative RVR's dated January 12, 2006, for Staff Manipulation and dated December 7, 2005, for Destruction of State Property. A review of inmate Escareno's file has indicated participation in Narcotics Anonymous and Alcoholics Anonymous, Self-Help Groups. He has demonstrated the desire and ability to fulfill job assignments as directed by his supervisors.

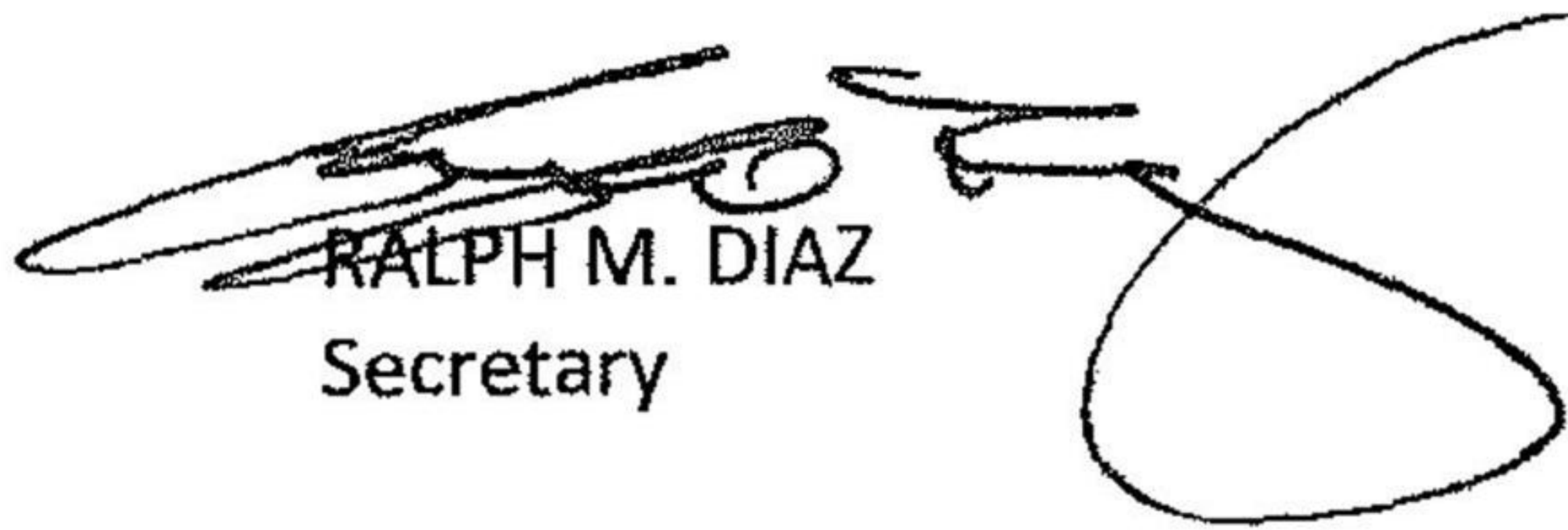
Escareno also was sentenced on June 25, 2002, on Case Number KA055189 in Los Angeles County, Pomona South District.

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Having reviewed the enclosed documentation it appears that inmate Escareno's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office